OPEN LETTER · EYE ON SHOALHAVEN COUNCIL

Letter to Cr Casmiri corrects flood report errors and asks who is driving the changes

Sent 29 September 2026 · To Cr Casmiri · Response requested by 6 October 2026

EYE ON SHOALHAVEN COUNCIL
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29 September 2026
Cr Luciano Casmiri
Shoalhaven City Council
By email:

Open letter: the Rhelm flood reports, the errors in your newsletter, and who bears the risk

Dear Cr Casmiri,

Your newsletter says you are disappointed that Council adopted the Lower Shoalhaven River and St Georges Basin Floodplain Risk Management Study & Plans, and that adoption may have an "unjustified major impact on land ownership" and expose ratepayers to "additional legal cost".

Since 28 July you have moved to defer the reports, to change "adopt" to "received", and, in September, to have flood-related DA refusals reported back to Council.

I have checked your newsletter against the agenda papers, the meeting record and the Act.

This letter asks you to correct what is wrong, and then to answer, directly and in public, a harder question: who does this activity serve, and who pays if Council follows it?

This is an open letter.

I will publish your reply in full, or record that none was received.

Part 1. Please correct these statements
1. "Council has recently appointed Rhelm." Council's project pages, reviewed on 31 October 2025, already say Rhelm "has been engaged". The agenda report (CL26.162 and CL26.163, 28 July 2026) says the work began in early 2024 and that the July items sought adoption of finished reports. Rhelm was not recently appointed.
2. The "$150K+" cost. The two-thirds State and one-third Council split is right. The reports give no total contract price. Is $150K your own estimate? If you have the contract value, please provide it.
3. That you could not get the reports to local stakeholders. On 25 August you told the chamber the Land Use committee "gave us an opportunity to circulate to some of the

stakeholders" and that their feedback went to all councillors. At the September meeting you called the exhibition "very good news". Which account is correct?
4. That "rescission was too late". Under s372(2) of the Local Government Act 1993, notice of rescission given at the meeting where a resolution is carried stops the resolution taking effect until the rescission is dealt with. Was notice given on 25 August? By whom?
5. That local planners, flood experts and landowners had no input. The reports record three consultation rounds since 2022, 5,485 letters to flood-affected owners, exhibition from 2 February to 15 March 2026 and five drop-in sessions attended by about 146 people. Who are the planners and engineers who contacted you, and did any lodge a submission?
Part 2. Who are you serving?
Your September remarks include an apology to landowners and homeowners "thanks to us adopting the report", and you have said town planners and engineers are "horrified". Your earlier motion CL26.191 began with "local industry concern". I ask you to say plainly:

6. Who asked you to act on the flood reports? Name the individuals or organisations, when they contacted you and what they asked for. If you will not name them, say why.
7. Which residents whose homes have flooded, or are at risk of flooding, have asked you to seek changes to the reports? How many?
8. Whose interests do you consider you were elected to protect when the interests of a landowner who wants to build and a household that may later be flooded point in different directions?
9. You have described the reports' effect on land value. Do you accept that land which floods is worth less because it floods, and that the report records that fact rather than causing it?
10. Do you hold, directly or through family, associates or a business, any interest in land or development in the Lower Shoalhaven or St Georges Basin floodplains? Have you declared it, and did you consider whether a declaration was needed before moving on these items? If you hold none, please say so.
Part 3. If Council follows this, Council carries the can
The staff report to Council says that not adopting the studies "may jeopardise" the exemption from liability in s733 of the Local Government Act. I have read s733. It protects Council for flood-related decisions, including granting or refusing consent to a DA, done in good faith. Subsection (4) presumes good faith where Council acts substantially in accordance with the flood manual.

Rhelm's reports were prepared under the NSW Flood Risk Management Manual (2023).

Departing from them case by case puts that presumption at risk.

The Lower Shoalhaven study records average annual flood damage of $22.6 million, 863 homes flooded above floor level in a 1-in-100-year flood, and areas such as Shoalhaven

Heads and Greenwell Point where evacuation in advance of a major flood is not achievable.

After Lismore, the NSW Government committed $800 million to a housing scheme for about 2,000 homes, including $520 million for buybacks. So I ask you:

11. If Council approves, or is pushed towards approving, a house on land its adopted study rates as highly flood affected, and that house floods, who pays? The buyer, the insurer, Council's ratepayers or the State?
12. What legal advice do you hold, or have you sought, on how your motions affect Council's s733 protection? Will you table it? If you have none, on what basis did you tell the community that adopting the reports raises Council's legal exposure, when the staff report says the opposite?
13. Your motions would put pressure on staff over refusals grounded in flood risk. Do you accept that this could push up the number of homes built where they will be damaged, and with it the repair, insurance and recovery cost to owners and to Council?
14. How many homes do you say would be affected in the way you fear, and by which recommendation? What is your estimate of the extra cost to those owners if the reports are watered down and they flood, compared with the value you say they lose today?
15. The Director told the chamber that Council has been taken to the Land and Environment Court over flood-related DAs rarely. What number of cases and what cost justify a change that could expose ratepayers to flood-damage claims?
16. Cr Boyd told the chamber that approving DAs on flood-prone land is "asking for trouble for people, for ratepayers in the future". Do you agree or disagree, and why?
17. The staff report says the reports were prepared under the Flood Prone Land Policy and Manual with the SES and the State department. Do you say the reports are wrong on the science? If so, which finding, and what data do you rely on? Please cite the report, section and page, and provide any competing modelling or expert opinion.

What I ask of you

· Correct the five statements in Part 1 in your next newsletter and to the same list.
· Answer the questions in Parts 2 and 3 in writing.
· Provide any flood modelling, expert advice or legal advice you rely on.

Please respond by Tuesday 6 October 2026.

I will publish this letter and your reply, including any correction. This letter is being copied to community groups, other elected representatives and media on my Community list so that everyone sees the same questions. Recipients can follow it up as they see fit.

Yours sincerely,

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Sources relied on

· Shoalhaven City Council, Ordinary Meeting agenda 28 July 2026, items CL26.162 and CL26.163.

· Council meeting recordings and machine-generated transcripts of 28 July, 25 August and September 2026 (the meeting that debated CL26.228). Quotations should be checked against the webcast.

· Shoalhaven City Council project pages for the Lower Shoalhaven River and St Georges Basin Floodplain Risk Management Study & Plans (last reviewed 31 October 2025).

· Draft Lower Shoalhaven River Floodplain Risk Management Study (Rhelm, 22 October 2025). Figures to be checked against the final study.

· Local Government Act 1993 (NSW), ss 372 and 733, read on legislation.nsw.gov.au.

· Lismore City News, 27 October 2022, $800m flood housing scheme announced.
